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Case Number: 25SMCV06000 Hearing Date: July 9, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 9, 2026

CASE NUMBER

25SMCV06000

MOTIONS

Demurrer and Motion to Strike Portions of Complaint

MOVING PARTIES

Defendants Beverly Hills Unified School District, Jason

Hasty, Rachelle Marcus, Judith Manouchehri, Amanda Stern, Sigalie Sabag, and

Russell Stuart

OPPOSING PARTY

Plaintiff Mark Mead

MOTIONS

This case arises from allegations that Plaintiff Mark Mead ("Plaintiff"), a former teacher and administrator employed by Defendant Beverly Hills Unified School District ("BHUSD"), was wrongfully terminated after fellow employee, Defendant Romeo Carey ("Carey"), who was the journalism teacher, doctored a video of Plaintiff, making it appear as though Plaintiff choked a student during an on-campus protest.

On November 14, 2025, Plaintiff filed suit against Defendants BHUSD, Carey, Jason Hasty ("Hasty"); Rachelle Marcus ("Marcus"); Judith Manouchehri ("Manouchehri"); Amanda Stern ("Stern"); Sigalie Sabag ("Sabag"); and Russell Stuart ("Stuart") alleging eight causes of action as follows:

1.
Defamation (Defendants
Carey & BHUSD)
2.
Negligence (Defendants
Carey & BHUSD)
3.
Negligent hiring, supervision, and retention (Defendant BHUSD)
4.
Labor Code, § 1102.5 Retaliation (All Defendants)
5.
Wrongful discharge and demotion in violation of public
policy (Defendant BHUSD)
6.
Intentional infliction of emotional distress (All Defendants)
7.
Labor Code, § 1050
(All Defendants)
- 8.

Due Process (42 U.S.C. § 1983 and Article I, § 7(a), California Constitution) (All Defendants)

The first two causes of action are alleged against only Carey and BHUSD. The third and fifth causes of action are alleged only against BHUSD.

Defendants BHUSD, Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart (collectively, "Moving Defendants") demur to Plaintiff's complaint on the grounds that they fail to state facts sufficient to constitute causes of action and are uncertain, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively. In particular,

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Defendant BHUSD demurs to the Second and Fifth Causes of Action.

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Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart demur to the Fourth Cause of Action.

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Moving Defendants demur to the Sixth, Seventh and Eighth Causes of Action.

Moving Defendants also move to strike the requests for punitive damages, liquidated damages, and civil penalties.

Plaintiff opposes both motions and Moving Defendants reply.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In

testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v.

City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer, however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe” the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party].” (Weil & Brown,

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers.

(See *Fenton v. Groveland Comm. Services Dist.* (1982) 135

Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

Moving Defendants demur in part on the grounds that the claims are uncertain because they refer to all “Defendants” in a general and conclusory fashion, without specifying what conduct is attributable to which defendants.

To wit, Plaintiff alleges:

123. [D]efendants knowingly made affirmative untrue statements to prospective employers with the intent to prevent him from obtaining employment

130.

Defendants failed to use reasonable care to determine the truth or falsity of the statements.

132.

Defendants’ conduct was a substantial factor in causing the harm.

133.

Defendants knew the video and statements were false, had serious doubts about the truth of the video and/or statements, and acted with malice, oppression, fraud, and wilful disregard of Mr. Mead’s rights.

149.

Defendants BHUSD, Jason Hasty, Rachelle Marcus, Judith Manouchehri, Amanda Stern, Sigalie Sabag, and Russell Stuart were and are Mr. Mead’s employer.

154.

Defendants BHUSD, Jason Hasty, Rachelle Marcus, Judith Manouchehri, Amanda Stern, Sigalie Sabag, and Russell Stuart took the following adverse employment

actions against Mr. Mead: Suspended Mr. Mead, terminated Mr. Mead, demoted Mr. Mead, reduced Mr. Mead's pay and benefits, refused (and continues to refuse) to promote or provide advancement opportunities to Mr. Mead, and imposed a hostile work environment and intense harassment of Mr. Mead.

155. Mr.

Mead's disclosures of and refusals to participate in and acquiesce to violations of local, state, and federal laws, rules, and regulations were contributing factors to Defendants BHUSD, Jason Hasty, Rachelle Marcus, Judith Manouchehri, Amanda Stern, Sigalie Sabag, and Russell Stuart's decisions to take the abovementioned adverse employment actions against Mr. Mead.

168.

Defendants' conduct was outrageous.

169.

Defendants intended to cause Mr. Mead to experience emotinal (sic) distress and/or Defendants acted with reckless disregard of the probability that Mr. Mead would suffer emotional distress.

175.

After Mr. Mead's employment as Director of School Safety ended, Defendants made representations to various prospective employers about Mr. Mead.

176.

Defendants knew these representations were not true.

177.

Defendants knew these representations were not true when they made them.

178.

Defendants made the representations with the intent of preventing Mr. Mead from obtaining employment.

185.

Defendants, acting under color of law, removed Plaintiff from his administrative position and nonrenewed his contract, which constituted a deprivation of Plaintiff's property and/or liberty interests in continued employment and reputation.

186.

Prior to said adverse action, Defendant failed to provide Plaintiff with timely and adequate notice of the reasons for demotion, evidence supporting the action, and a meaningful opportunity to respond or contest the charges, as required by the Due Process Clause of the Fourteenth Amendment to the United States Constitution and Article I, § 7(a) of the California Constitution.

187.

Defendants' actions were accompanied by the public dissemination of false and stigmatizing allegations against Plaintiff, with the foreseeable effect of impairing his ability to obtain future employment in his field.

188.

Defendants' failure to afford appropriate pre-deprivation process, and their publication of stigmatizing statements, violated Plaintiff's constitutional rights to due process of law.

(Complaint ¶¶ 123, 130, 132-133, 149, 154-155, 168-169, 175-178, 185-188.)

Thus,

Plaintiff's fourth, sixth, seventh, and eighth causes of action conflate numerous individual and entity defendants as Plaintiff's "employer" and charge each of them with taking adverse employment actions against him and making defamatory statements about him to prospective employers.

However,

the Complaint also clarifies that the individual defendants (except for Carey) are members of BHUSD's Board of Directors, except for Hasty, who is BHUSD's assistant superintendent. (See Complaint ¶¶ 13-18.) As such, they would each be responsible for employment decisions made by BHUSD, as well as public statements BHUSD makes about Plaintiff.

Therefore,

while the Complaint groups Moving Defendants together, the Court does not find that makes the Complaint "is so bad that the responding party cannot reasonably respond," as the individual Moving Defendants are all either administrators or members of BHUSD's board, making them potentially culpable individually and collectively for the alleged wrongful conduct.

Therefore, the Court declines
to sustain the demurrer on the grounds of uncertainty.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

Individual

Defendants' Immunity

Moving Defendants first argue that the individual moving defendants are immune from liability because public employees are not personally liable for their discretionary acts, whether or not such discretion is abused.

Indeed, "Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused."

(Gov. Code, § 820.2.)

This discretionary immunity applies to school board members. (See *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 976 (hereafter *Caldwell*).)

It has also been applied to superintendents. (See, e.g., *Wormuth v. Lammersville Union Sch. Distr.* (E.D. Cal. 2018) 305 F.Supp.3d 1108, 1130.)

Notwithstanding, a public employee is generally liable for injurious acts or omissions to the same extent as a private person. (Gov. Code, § 820, subd. (a).) As such, the immunity for exercising discretionary

authority "applies only to deliberate and considered policy decisions in which a conscious balancing of risks and advantages" occurred; it does not immunize lower-level or negligent ministerial acts within the scope of their authority that merely implement an already-formulated policy.

(See *Caldwell*, supra, 10 Cal.4th at pp. 979, 981.)

Indeed, high level board decisions about hiring or firing are covered under discretionary immunity, at least with respect to statutes, like FEHA, which do not specifically provide for individual liability. (*Caldwell*, supra, 10 Cal.4th at p. 982.) However, the moving individual

defendant are not immune from claims under California's whistle-blower statute, Government Code section 19683, which provides for such individual liability. (See *Shoemaker v. Myers* (1992) 2 Cal.App.4th 1407, 1423-1424; *Caldwell*, supra, 10 Cal.4th at p. 986 & fn. 7.)

Here, Plaintiff's fourth cause of action for retaliation is brought under Labor Code section 1102.5 and Plaintiff's seventh cause of action is brought under Labor Code section 1050.

Plaintiff argues that because *Shoemaker* and this action both involve whistle-blower retaliation claims, the immunity should similarly not bar Plaintiff's whistle-blower claims here. But unlike the whistle-blower statute in *Shoemaker*, Government Code section 19683, which specifically calls for "a just and proper penalty" against both the employer and the specific manager, supervisor, or employee who unjustly retaliated against a whistleblower, there is no such analogous provision in the Labor Code. To the contrary, only "an employer is liable for a civil penalty" for each violation and "in all prosecutions under this chapter, the employer is responsible for the acts of his managers, officers, agents, and employees." (Lab. Code §§ 1102.5, subd. (f); 1104.)

Because Government Code section 820.2 exempts employees from discretionary liability "except as otherwise provided by law," the Labor Code's failure to hold the offending managers, agents, and/or employees individually liable is fatal to Plaintiff's retaliation claims against them.

However, an agent or officer who violates a provision of Labor Code section 1050 is civilly liable to the aggrieved party. (Lab. Code, § 1054.)

Thus, the Court finds that the individual moving defendants are immune from liability under the fourth cause of action only.

The individual Moving Defendants also argue that any defamatory statements they made about Plaintiff are privileged, as they were made in the proper discharge of an official duty, pursuant to Civil Code section 47, subdivision (a), and/or in the course of board meetings which are "official" and "legislative" proceedings under Civil Code section 47, subdivision (b). Whether the statements, if any, were all made in the proper discharge of an official duty or within the course of an official, legislative proceeding requires the resolution of facts at

later stages of the litigation.

Therefore, the Court sustains the individual Moving Defendants' demurrer to the fourth cause of action only on the grounds of discretionary immunity.

ii.

Second Cause
of Action - Negligence

The elements for a negligence cause of action are duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Moving Defendants demur to the second cause of action on the grounds that Plaintiff has failed to allege the District owes any duty. Indeed, Plaintiff alleges:

135. At all relevant times, Romeo Carey, BHUSD's board, employees, and agents were acting in the scope of their agency and employment when they harmed Mr. Mead.

136. Carey, in harassing and defaming Mr. Mead, and BHUSD in permitting and encouraging Carey's harassment and defamation of Mr. Mead, were negligent.

137. Mr. Mead was harmed by said negligence.

138. Said negligence was a substantial factor in causing Mr. Mead's harm.

The Court agrees with Moving Defendants that the allegations allege breach, causation, and damages, but no duty.

Therefore, the Court sustains the demurrer to the second cause of action.

iii.

Fifth Cause
of Action – Wrongful Discharge and Demotion

Moving Defendants demur to the fifth cause of action on the ground that

the Supreme Court has held that a claim for wrongful discharge cannot be brought against a public entity. (See Miklosy v. Regents of Univ. of Cal. (2008) 44 Cal.4th 876, 900.) Plaintiff does not contest this argument in opposition.

Therefore, the Court sustains the demurrer to the fifth cause of action.

iv.

Sixth Cause

of Action – Intentional Infliction of Emotional Distress

To

prevail on a cause of action for Intentional Infliction of Emotional Distress (“IIED”), a plaintiff must plead and ultimately prove: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.) A defendant’s conduct is outrageous when “it is so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Ibid. [cleaned up].) Further, the defendant’s conduct must be “intended to inflict injury or engaged in with the realization that injury will result.” (Id. at p. 1051 [cleaned up].) “Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it.” (Ibid.)

Moving

Defendants demur to the sixth cause of action on the ground that simple acts of managing personnel alleged against them do not constitute extreme or outrageous conduct beyond the bounds that are usually tolerated in a civil society.

Plaintiff

concedes this point in opposition and agrees to withdraw the sixth cause of action as to all Defendants except non-moving Defendant Carey.

Therefore,

the Court sustains the demurrer to the sixth cause of action.

v.

Seventh

Cause of Action – Labor Code, § 1050

Moving

Defendants demur to Plaintiff's seventh cause of action on the grounds that Labor Code section 1050 applies only to conduct that occurs after an employee is discharged, yet Plaintiff remains employed with the district.

However,

the Complaint alleges Plaintiff was discharged.

(See Complaint ¶ 162 ["Defendant BHUSD discharged and demoted Mr. Mead."])

Further,

as discussed above, because Labor Code section 1054 expressly provides that agents and employees who violate Section 1050 are civilly liable, individual immunity does not bar Plaintiff's claims against the individual Moving Defendants.

Therefore,

the Court overrules the demurrer to the seventh cause of action.

vi.

Eighth Cause

of Action – Due Process

Moving Defendants demur to the eighth cause of action on the grounds that unlike a dismissal, a mere demotion does not implicate the employee's due process rights. They explain that, while a public employee who is subject to dismissal only for cause may not be dismissed without procedural safeguards in furtherance of that employee's due process rights (*Jones v. Omnitrans* (2004) 125 Cal.App.4th 273, 279), an employee is not entitled to those same due process protections when merely being removed from a promotional level position (*Council of Dir. And Supp. Of Los Angeles City Sch. v. Los Angeles Uni. Sch. Dist.* (1973) 35 Cal.App.3d 147, 154 [hereafter "Council."]) In *Council*, the appellate court explained that, because recipients lacked tenure in their promotional positions, their expectation of continued employment in their promotional level positions was not an interest warranting constitutional protection.

Thus, Moving Defendants argue that, because Plaintiff alleges only that

he was discharged from his promotional position (see Complaint ¶ 121 [“the District notified Mr. Mead that his contract would not be renewed” but it guaranteed his right to return as a teacher with a \$66,000 reduction in pay]), his due process rights were not violated.

Indeed, the eighth cause of action is premised entirely upon this demotion. “Defendants, acting under color of law, removed Plaintiff from his administrative position and nonrenewed his contract, which constituted a deprivation of Plaintiff’s property and/or liberty interests in continued employment and reputation.” (Complaint ¶ 185, emphasis added.)

Plaintiff does not contest this argument in opposition.

Therefore, the Court sustains the demurrer to the eighth cause of action.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

BHUSD moves to strike punitive damages, liquidated damages, and statutory penalties on the grounds that they are barred under Government Code section 818 and that the allegations lack the requisite specificity.

The individual Moving

Defendants move to strike punitive damages only on the grounds that they have immunity and the allegations lack the requisite specificity.

a.

Punitive Damages - Specificity

All Moving Defendants move to strike the punitive damages on the ground that the allegations lack the requisite specificity.

In ruling on a motion to strike punitive damages, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (College Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Further, a plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See Smith v. Superior Court

(1992) 10 Cal.App.4th 1033, 1041-1042.)

“When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him.” (G. D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In Anschutz Entertainment Group, Inc. v. Snepp, the Court of Appeal noted that the plaintiffs’ assertions related to their claim for punitive damages were “insufficient to meet the specific pleading requirement.” (Anschutz Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643 [plaintiffs alleged “the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff’s rights. Plaintiff’s injuries were exacerbated by the malicious conduct of Defendants. Defendants’ conduct justifies an award of exemplary and punitive damages”]; see also Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 [“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim”].)

Moreover, “the imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others.” (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.) “Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees. But the law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the officers, directors, or managing agents.” (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167 [cleaned up].)

Here,
as to the Moving Defendants, the Complaint lacks the requisite specificity as to the who, what, when, where, to whom, and how the allegedly defamatory statements and adverse employment decisions were made. Instead, grouping all Defendants together, Plaintiff alleges in conclusory fashion:

133.

Defendants knew the video and statements were false, had serious doubts about the truth of the video and/or statements, and acted with malice, oppression, fraud, and wilful disregard of Mr. Mead's rights. Plaintiff is entitled to punitive damages within the meaning of California Civil Code section 3294 in a sum sufficient to punish and deter Defendants' future conduct.

139.

Defendants acted with malice, oppression, fraud, and willful disregard of Mr. Mead's rights. Plaintiff is entitled to punitive damages within the meaning of California Civil Code section 3294 in a sum sufficient to punish and deter Defendants' future conduct.

158.

Defendants Jason Hasty, Rachelle Marcus, Judith Manouchehri, Amanda Stern, Sigalie Sabag, Russell Stuart, and Does 1-10 acted with malice, oppression, fraud, and willful disregard of Mr. Mead's rights. Plaintiff is entitled to punitive damages within the meaning of California Civil Code section 3294 in a sum sufficient to punish and deter Defendants' future conduct.

(Complaint ¶¶ 133, 139, 158.)

The

Court finds that the allegations are insufficient to satisfy the heightened pleading requirement to allege claim for punitive damages against any of the Moving Defendants.

b.

Liquidated Damages

Moving Defendants first argue

Plaintiff fails to articulate a statutory basis for liquidated damages. Plaintiff argues in opposition that Plaintiff seeks liquidated damages pursuant to Labor Code section 1102.5, subdivision (f).

As discussed above, the Court

sustains Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart demurrer to the fourth cause of action on the grounds that discretionary immunity bars Plaintiff's claims against them under Labor Code section 1102.5. As a result, Plaintiff is similarly not

entitled to recoup liquidated damages as against those Defendants.

BHUSD additionally argues that Plaintiff may not pursue liquidated damages against it, because such “punitive” or “penalty” damages intended to punish are not available against public entities. Plaintiff argues in opposition that liquidated damages can be compensatory, and are not necessarily punitive. In reply, Moving Defendants argue that because Plaintiff also seeks compensatory damages, the request for liquidated damages is necessarily punitive.

The Court disagrees that Plaintiff’s competing requests for compensatory and/or liquidated damages is necessarily punitive. (See *Iloff v. LaPaille* (2025) 18 Cal.5th 551, 565 [noting that while liquidated damages can serve as a means of punishing or deterring wage and hour violations, they are also a means of compensating employees for actual damages that are too obscure or difficult to prove or estimate].)

As such, the Court denies BHUSD’s request to strike the request for liquidated damages.

c.

Statutory Penalties

BHUSD argues that statutory penalties are unavailable as against public entities as a matter of law. “[A]s a general rule, statutory penalty provisions do not apply to public entities. (DuBois v. Workers’ Comp. Appeals Bd. (1993) 5 Cal.4th 382, 398.) Indeed, Government Code section 818 provides, “Notwithstanding any other provision of law, a public entity is not liable for [...] damages imposed primarily for the sake of example and by way of punishing the defendant.”

Plaintiff does not address this argument in opposition. Therefore, the Court strikes Plaintiff’s request for statutory penalties against BHUSD.

3.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff

has identified additional allegations he can allege with respect to Moving Defendants' statutory and common law duties.

Therefore, the Court grants leave to amend the second cause of action for negligence.

Plaintiff

also contends he can allege more specific allegations supporting his request for punitive damages as against Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart. In turn, those Individual Defendants argue that leave should not be granted because they are also immune from liability. But as discussed above, the Court finds Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart are immune from liability only as to the Fourth Cause of Action for whistle-blower retaliation under Labor Code section 1102.5.

To the extent Plaintiff also seeks punitive damages against those Individual Moving Defendants pursuant to the seventh cause of action for violations of Labor Code section 1050, such damages are not necessarily barred by discretionary immunity. Therefore, the Court grants leave to amend the punitive damages allegations as to Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart.

However, with

respect to punitive damages and statutory penalties, "a public entity is not liable for damages awarded under section 3294 of the Civil Code[.]" (Government Code section 818.) As such, allowing Plaintiff leave to amend the claim for punitive damages and statutory penalties would be futile.

Similarly, because Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart are immune from whistle-blower retaliation claims under the Labor Code, leave to amend the fourth cause of action or liquidated damages as to the individual Moving Defendants would similarly be futile.

Further, Plaintiff did not contest Moving Defendants' demurrer to the fifth, sixth or eighth causes of action.

CONCLUSION AND ORDER

For the reasons stated, the Court sustains without leave to amend Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart's demurrer to the fourth cause of action for whistle-blower retaliation under Labor Code section 1102.5 on the grounds that discretionary immunity bars Plaintiff's claim.

Further, the Court sustains the demurrer to the second cause of action for negligence with leave to amend and sustains the demurrer to the fifth, sixth, and eighth causes of action without leave to amend.

Further, the Court overrules the demurrer to the seventh cause of action.

Further, the Court grants in part Moving Defendants' motion to strike and strikes Plaintiff's request for punitive damages and statutory penalties as to BHUSD without leave to amend, but denies Moving Defendants' motion to strike Plaintiff's request for liquidated damages against BHUSD.

As to Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart, the Court grants the motion to strike and strikes Plaintiff's request for punitive damages with leave to amend. Because Plaintiff only seeks liquidated damages as to Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart pursuant to the fourth cause of action, and the Court sustains the individual Moving

Defendants' demurrer to the fourth cause of action without leave to amend, the Court similarly denies Plaintiff leave to amend the request for liquidated damages against Defendants Hasty, Marcus, Manouchehri, Stern, Sabag, and Stuart.

Further, the Court orders Plaintiff to file and serve an amended complaint in conformity with the rulings on or before July 31, 2026.

The Court will enter the proposed Orders lodged on April 1, 2026 in conformity with the rulings, and Moving Defendants shall provide notice of the Court's Orders and file the notice with a proof of service forthwith.

DATED: July 9, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court